

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1912

By: Alonso-Sandoval

AS INTRODUCED

An Act relating to folic acid; creating the Corn Masa Nutrition Enhancement Act; defining terms; requiring corn masa flour contain certain amounts of folic acid; requiring wet corn masa product contain certain amounts of folic acid; requiring nutritional labeling; requiring manufacture labeling; providing exceptions; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-1145 of Title 63, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Corn Masa Nutrition Enhancement Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-1145.1 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Corn masa flour", also commonly known as masa harina, means a dry flour-type product made from corn that has been treated with

1 slaked lime or otherwise undergoes a process known as
2 nixtamalization;

3 2. "Snack foods" means pre-packaged food items typically
4 intended for immediate consumption, characterized by small or
5 single-serving portions, and designed primarily for consumption
6 between meals. This includes, but is not limited to, products such
7 as chips, crisps, or extruded snack products, often sold
8 individually or in small bags or containers. Snack foods shall not
9 include bulk-packaged corn masa products or other items commonly
10 used as primary ingredients in meal preparation, such as tortillas;
11 and

12 3. "Wet corn masa product" means food manufactured by using an
13 alkali solution with corn kernels to transform them into nixtamal.
14 Wet corn masa product does not include products made with corn masa
15 flour.

16 B. 1. Commencing January 1, 2026, corn masa flour
17 manufactured, sold, delivered, distributed, held, offered for sale,
18 or used as an ingredient in the manufacture of a food product shall
19 contain folic acid at a level of seven-tenths (0.7) milligrams of
20 folic acid per pound of corn masa flour within an acceptable
21 industry standard deviation of error.

22 2. Commencing January 1, 2026, wet corn masa product
23 manufactured, sold, delivered, distributed, held, offered for sale,
24 or used as an ingredient in the manufacture of a food product shall

1 contain folic acid at a level of four-tenths (0.4) milligrams of
2 folic acid per pound of end product within an acceptable industry
3 standard of deviation of error.

4 C. Commencing January 1, 2026, corn masa flour or a wet corn
5 masa product shall include both of the following:

6 1. A declaration of folic acid on the nutrition label in
7 accordance with applicable federal law, including, but not limited
8 to, 21 C.F.R., Section 101.9; and

9 2. A declaration that the product contains corn masa flour or
10 was manufactured through a wet corn masa manufacturing process.

11 D. 1. A person or entity may manufacture, sell, deliver,
12 distribute, hold, offer for sale, or use as an ingredient in the
13 manufacture of products corn masa flour that does not meet the
14 requirements of paragraph 1 of subsection B of this section, if they
15 meet the definition of, or are suppliers to, any of the following:

16 a. a cottage food operation,

17 b. a food facility, or

18 c. a small-volume operator.

19 2. This section shall not apply to snack foods.

20 SECTION 3. This act shall become effective November 1, 2025.

21
22 60-1-11170 TJ 01/13/25
23
24